

JUDGMENT SHEET
LAHORE HIGH COURT,
MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

W. P. No. 16545 / 2021

Rizwan Akhtar

Versus

Director General, Multan Development Authority, Multan & another

JUDGMENT

Date of Hearing:	02.03.2022
Petitioner(s) By:	Rao Muhammad Iqbal, Advocate
Respondent(s) By:	Barrister Malik Sohail Ashiq, Advocate

ABID HUSSAIN CHATTHA, J: Through this constitutional Petition, the Petitioner seeks appointment against the post of “**Dispenser**” in BPS-12 by setting aside the impugned Order dated 14.10.2021, whereby, the representation of the Petitioner in this behalf was declined.

2. Precisely, Multan Development Authority (the “**MDA**”) initiated a recruitment process regarding different posts through Open Testing Service (the “**OTS**”) including the post of Dispenser which was required to be filled through open merit, as per advertisement. The prescribed eligibility for the said post was “Intermediate with Dispenser’s Course” with age limit of 18-25 years for all applicants and maximum age limit of 45 years for ex-servicemen. The Petitioner passed the written test conducted by the OTS for the said post and was called for interview. However, the Selection Committee did not conduct his interview on the ground that under the MDA (Appointment & Conditions of Service) Regulations, 2016, “Intermediate” is the basic qualification for recruitment for the post of Dispenser, whereas, the Petitioner possessed an equivalent qualification of 02 years “Diploma in Commerce (D.Com)” which qualification was not required by the MDA for the said post as per

advertisement. It is noted that the Petitioner earlier filed a Writ Petition No. 11974 / 2021 before this Court in which vide order dated 05.08.2021, a direction was issued to Respondent No. 1 to decide the representation of the Petitioner in accordance with law. Accordingly, the impugned order dated 14.10.2021 was passed, whereby, the representation of the Petitioner was declined on the ground mentioned above.

3. The sole question before this Court is as to whether the requirement of “Intermediate” was restrictive and could not be equated with any other Degree recognized as equivalent to “Intermediate”. The perusal of the impugned order dated 14.10.2021 reveals that the Petitioner has qualified two years D.Com. from the Punjab Board of Technical Education, Lahore by securing 776 marks out of 1200. He also presented the Equivalence Certificate duly issued by the Punjab Board of Technical Education dated 18.10.2017 which specifically stated that D.Com. Degree being offered by the Board of Technical Education in the country has been declared equivalent to HSSC (Commerce Group) by the Inter Board Committee of the Chairman (the “**IBCC**”), Ministry of Education, Government of Pakistan. Accordingly, D.Com. course is equivalent to HSSC (Commerce Group). As such, the Petitioner has Equivalence Certificate from the IBCC regarding the Intermediate qualification and Dispenser's course from the Government recognized institution. It was also established vide impugned Order that the Petitioner had a valid Dispenser's course as part of prescribed eligibility criteria. Notwithstanding the above, it was declared in the impugned Order that although the IBCC has declared the D.Com. equal to HSSC yet it is not “Intermediate” and as such, is not acceptable in terms of the advertisement issued by the MDA for the said post. Since the advertisement did not ask for equivalence, therefore, the Petitioner was declared ineligible for appointment against the post of Dispenser.

4. The impugned Order has been analyzed in view of the advertisement placed on record. It is noted that 12 different posts with respective eligibility criteria were advertised with instructions contained in Parts-A & B regarding submission of application forms and applicable terms and conditions. Importantly, Condition No. 17 explains that “A level

candidates must attach their HSSC equivalent certificates with their applications.” Interestingly, A-Level is not specifically prescribed qualification against any of the advertised category of the posts. The explanation clearly depicts that equivalence was recognized and was read in with prescribed qualification for each category. The only basic requirement was that of “Intermediate” without any sub-categorization of having done F.Sc. or F.A. Hence, there is no lawful justification and reason to refuse consideration regarding appointment of the Petitioner when legitimate and lawful Equivalence Certificate issued by the IBCC was produced. When equivalence was recognized regarding A-level candidates, it *ipso facto* meant that the same benefit in terms of equivalence was also available to the Petitioner regarding his D.com Degree.

5. In view of the above, this Petition is **allowed**; the impugned order dated 14.10.2021 is set aside and the Respondents are directed to call the Petitioner for interview and finalize the recruitment process against the post of Dispenser, in accordance with law within a period of 30 days from the date of this Order.

(Abid Hussain Chattha)
Judge

Waqar